

MD3C, LTD. Terms Of Use
EFFECTIVE DATE: December 8, 2020

These Terms of Use (or, the “Agreement”) apply to your access to and use of the services associated with MD3C information technology (the “Service), which may be available online, through a website, through a mobile application, or any other device or portal that is designed to facilitate access to the information technology that we provide. These services are operated by MD3C, LTD. (“MD3C” also, “our,” “us,” or “we.” Whenever and however you access the Service, your access to and use of the Service is subject to these Terms of Use, regardless of whether you create an account (“Account”).

If you do not agree to these Terms of Use, or you do not understand them, do not access or use the Service.

When you use the Service, you agree to be bound by these terms of use.

Key features of these Terms of Use include:

- incorporation of our Privacy Policy; in the event of any inconsistency between the Terms of Use and the Privacy Policy, the Terms of Use shall control.
- a provision that will generally require the use of arbitration on an individual basis to resolve disputes, rather than jury trials or class actions, and will also limit the remedies available to you in the event of a dispute.
- Notice that providing a phone number and using the service constitutes providing a signature to this Agreement
- an agreement that continued use of the Service after the posting of any changes of the Terms of Use constitutes acceptance of the changes
- an agreement not to use the Service in the event of an emergency
- an agreement that MD3C does not ever provide medical advice
- notice that the system allows you, as a patient seeking healthcare, to enter a phone number to indicate an interest in same day healthcare.
 - Currently, we do not have any reliable safeguards to prevent the entry of fraudulent phone numbers into our system. If you inappropriately receive SMS (text) messages from our system, you should ignore them.
 - the phone number used by our system for various notifications
 - entry of the correct phone number is your responsibility to use the Service to adjust.
 - This association (between the phone number and the healthcare facility) is shared with users who have indicated an association with that healthcare facility
 - We do not independently guarantee the authenticity of healthcare facilities nor of the representatives of these healthcare facilities
 - You should not initiate this process with a facility that is unknown to you
 - Multiple SMS (text) messages will be sent to the phone number entered, which will identify the requested connection between the healthcare facility and the owner of the phone.
 - Any person viewing the SMS messages associated with the phone number will become aware of this requested connection
 - It is solely your responsibility to protect the confidentiality of your phone and associated SMS messages
- If your use of the system is in the “Facility Manager” role on our service, you represent that you are a healthcare provider, or a representative or an agent of a healthcare provider.

There are additional specific terms of use that apply to you. These are found as an addendum to this agreement.

1. Our Privacy Policy is incorporated into these Terms of Use by this reference. By accepting these Terms of Use, you agree to our collection, use, and disclosure of information, including, if applicable, personal health information, as described in the Privacy Policy.
2. Except under limited circumstances, the Service has no intent to collect, store, or retrieve personal health information (PHI).
 - a. It is the desire of the Service to avoid the collection, storage, and retrieval of PHI
 - b. Nonetheless, the information collected by the Service, i.e. a phone number that can be connected to a unique individual, and a healthcare facility that can provide same day healthcare, can be considered PHI
 - c. Accordingly, the Service will treat that association – the link between a phone number and a healthcare facility – as PHI, with all appropriate protections, including those afforded by the Health Insurance Portability and Accountability Act
3. When you provide a phone number or an email address in order to use the service, this will be considered your written signature of agreement to this Agreement.
4. The Service does not consider your phone number, in and of itself, to be PHI.

By creating an Account, you are directing the Service to communicate with you. Your decision to direct the Service to communicate you may be pursuant to your rights of access under the Health Insurance Portability and Accountability Act of 1994 (“HIPAA”), 45 C.F.R. 164.524(c)3(ii).

Subsequent to your initial use of the Service, the Service may contact you electronically. You agree and consent to communicate with us electronically, and specifically agree that we may contact you by telephone, email, or text messages at any of the phone numbers you provide to us in connection with your account. This communication may include communications for marketing purposes. Message and data rates may apply. Generally, you may opt out of receiving text messages from us, either by replying “STOP” to messages sent via a short code (i.e. a 5- or 6- digit phone number), or by adjusting your preferences in your Account while using the Service. While we will endeavor to follow your instruction, some cases, a “STOP” instruction from you may not be immediately communicated throughout our system, and you may receive some messages from us even after providing a “STOP” instruction. You accept this risk.

You agree that all communications that we provide to you, regardless of form, electronically satisfy any legal requirement that such communications be in writing.

You understand and agree that you will need access to certain hardware and software in order to access and print certain communications that we send you. By agreeing to these Terms of Use, you acknowledge and verify that you have the ability to access and retain PDF files if necessary.

Subject to our document retention policies, you have the right to withdraw your consent and / or receive any of the legally required disclosures that have been provided to you in printed / paper form, but we may charge you a reasonable fee to cover the cost of printing and mailing

these notices. Generally, requested paper copies of documents will be mailed to the address you provide in your Account; to update your contact information, you can access your Account using the Service.

5. You agree that you will
 - a. comply with all applicable laws, rules, and regulations
 - b. avoid any action that interferes with the proper working of the Service
 - c. avoid any action that compromises the security of the Service
 - d. avoid any action that is detrimental to the intended function of the Service
 - e. avoid any action that is unlawful or prohibited by this Agreement
 - f. avoid the solicitation or inducement of any activity that is illegal, or that infringes on our rights or the rights of others
 - g. avoid any attempt to gain unauthorized access to the Service or any portion of the Service to which access is restricted
 - h. avoid any attempt to gain unauthorized access to our servers, including but not limited to by hacking, password mining, or any other unauthorized means
 - i. avoid any attempt to probe, scan, or test for vulnerabilities of the Service or any network connected to the Service
 - j. avoid attempting to breach or bypass the security and authentication measures of the Service, or any network connected to the Service
 - k. avoid uploading any viruses or other code to the Service, regardless of its intended function
 - l. agree to and abide by the limitations on access to personal health information provided by the Service
 - m. avoid unauthorized access to personal health information, even if the design of the Service allows it
 - n. avoid using any automated means to collect or retrieve information or content from the Service, including but limited to the use of technical tools known as robots, spiders, or scrapers
 - o. avoid the creation of more than one account
6. You agree not to use the Service in the event of an emergency.

If you are experiencing a medical emergency that requires care in a timely manner, or if you think you may be experiencing a medical emergency that requires care in a timely manner, you agree not to use any the Service. In such situations, we recommend that you call 911 or your local emergency response phone number to seek help.

The Service is designed to be reliable, and MD3C has contracted with technology partners to provide a reliable service. Nonetheless, the Service relies on numerous processes to successfully achieve its goals. These include, but are not limited to,

- a. a device with a web browser
- b. successful use of the device to create a connection to the Service using the web browser (or similar)
- c. successful authentication of the user on the web browser
- d. successful communication, using a network, between the user's device and the computer server(s) that is (are) responsible for the Service
- e. the software associated with the Service
- f. the computer hardware associated with the Service

Only a few of these processes are amenable to direct control by the Service. Accordingly, MD3C can provide no guarantee as to the reliability of the service. You agree to carefully evaluate the risks associated with use of the Service before using the Service. You agree not to use the Service for any process or function that requires a level of reliability that is greater than that which MD3C can guarantee (which is none).

7. The Service acts as your agent in facilitating a variety of healthcare related interactions with your healthcare providers. These interactions are initiated by you, and you remain responsible for your healthcare choices and decisions. The Service will provide information to you that results in additional choices and options regarding your healthcare – but it is not designed to limit your choices. You are always free to choose additional or different healthcare products and services available using contacts and connections other than the Service.
8. MD3C is committed to providing a patient-centric Service that solves problems for patients. To create and maintain the Service, MD3C may receive compensation from a variety of partners in recognition of marketing, adherence, and other services.
9. MD3C does not provide medical advice, and the Service must not be taken to be the practice of medicine, pharmacy, or any other healthcare service. When you use the Service, you are not creating a physician/patient or provider/patient relationship with MD3C. MD3C does not recommend or endorse any specific prescription drug, pharmacy, or healthcare provider. Any time you start, stop, or change how you take a prescription medication, you should seek professional advice first.

MD3C may provide tools that are designed to help patients identify health care facilities available to them. These tools may include information pertaining to the capabilities of the health care facilities shown. In many cases, this information is sourced from third-parties, and we can provide no guarantee as to the accuracy of this information.

In any case, MD3C can provide no guarantee as to results of any kind, and you as the user assume all risks associated with use of our services.

10. The Service may contain links to websites and services that are provided by other entities. We are not responsible for any aspect of these websites or services, and we do not monitor these websites or services for accuracy, completeness, or bias. If we provide a link to a website or service on our Service, this does not imply approval of nor endorsement. If you decide to access these third-party websites or services, you do so at your own risk.
11. Warranty exclusions, limitation of liability, and indemnification:
This applies any time you use the Service, whether you have created an Account or not: To the fullest extent allowed by law, and except as expressly established in these Terms of Use, the Service and all associated materials, products, and services are not subject to warranties, conditions, or guarantees of any kind, whether statutory, written, oral, or implied. This includes without limitation warranties, conditions, or guarantees of merchantability, fitness for a particular purpose, performance quality, or durability, all of which are disclaimed.

In no event will MD3C be liable for any special, extraordinary, indirect or consequential damages of any kind whatsoever, including without limitation damages for loss of data, lost profits, loss of opportunity, business interruption, personal injury or death, or any other loss arising out of, relating to, or in connection with the Service, even if MD3C has been advised of the possibility of such damages.

If, as a result of or in connection with the use of the Service, MD3C becomes liable to the purchaser of the Service (or any other person) for any damages, losses, costs, expenses, or other liabilities whatsoever, and regardless of the form of action (in contract, tort, or pursuant to statute), then MD3C's aggregate liability, and the sole and exclusive remedy, will be limited to an amount equal to the amount paid by the purchaser respective to the respective (affected) individual's Account for the Service in the previous calendar year.

The exclusion of certain conditions and warranties and time limitation of certain liability is prohibited in some jurisdictions. In the event some jurisdictions do not allow the exclusion or limitation of damages to the extent indicated above, our liability in such jurisdictions shall be limited to the extent permitted by law.

You agree to defend, indemnify, and hold us, our affiliates, subsidiaries, joint ventures, third-party service providers, and our respective employees, contractors, agents, officers, and directors harmless from any and all liability, claims, and expenses (including reasonable attorneys' fees) that arise out of or are related to your violation of this Agreement, or your use or misuse of the Service.

Neither MD3C nor you will be liable for any failure or delay in performing an obligation under this Agreement that is due to any of the following causes, to the extent beyond its reasonable control: acts of God, accident, riots, war, terrorist act, epidemic, pandemic, quarantine, civil commotion, breakdown of communication facilities, breakdown of web host, breakdown of internet service provider, natural catastrophes, governmental acts or omissions, changes in laws or regulations, national strikes, fire, explosion, generalized lack of availability of raw materials or energy.

12. You agree to notify us if you stop using a phone number that you have provided to us with the understanding that you will be receiving text messages from us. You agree to indemnify us for text messaging charges and fees that may result from your failure to provide such notification to MD3C. You agree to indemnify us for any breach of your confidentiality that might result from your failure to provide such notification.
13. Whenever you use the Service supplied as a mobile application, the following rights, obligations, and commitments will apply. You understand and agree with the Service is licensed, not sold, to you for use only as outlined in this Agreement. We reserve all rights not expressly granted to you. We have the right to license the MD3C mobile application and all underlying content, information, applications, and intellectual property. This license is limited to a non-transferable license to use the MD3C mobile application on the applicable mobile device that you own or control (e.g. iPhone, Android device), in accordance with the Terms of Use, and, as applicable, Google Inc.'s ("Google") "Google Play Terms of Service" (<http://play.google.com/about/terms.html>) and / or the Usage Rules set forth in the Apple, Inc. ("Apple") "App Store Terms of Service."

This license does not allow you to use the MD3C mobile application on a device that you do not own or control, and you may not distribute or make the MD3C mobile application available over a network where it could be used by multiple devices at the same time. You may not rent, sell, lease, lend, redistribute, or sublicense the MD3C mobile application. You may not copy, decompile, reverse engineer, disassemble, attempt derive the source code of, modify, or create derivative works of the MD3C mobile application, any updates, or any part thereof.

14. You acknowledge that you are entering into these Terms of Use with us and not with Apple or Google; that, Apple and Google and each of Apple's and Google's subsidiaries are third-party beneficiaries of these Terms for the MD3C mobile Application and may enforce them; that we are solely responsible for the MD3C mobile application and its associated data; that Apple and Google makes no warranty with respect to the MD3C mobile application and its associated data and has no obligation whatsoever to furnish any maintenance and support services for the MD3C mobile application; that Apple and Google are not responsible for addressing any claims relating to the MD3C mobile application and its associated data or your possession or use of the MD3C mobile application and its associated data, including but not limited to: (i) product liability claims, (ii) any claims that the MD3C mobile application fails to conform to any legal or regulatory requirement, and (iii) claims arising under consumer protection and similar legislation; and that if a third party claims that the MD3C mobile application and its associated data or your possession or use of such infringes a third party's intellectual property rights, Apple and Google are not responsible for the investigation, defense, settlement and discharge of any such intellectual property infringement claim. In the event of any failure of the MD3C application to conform to any applicable warranty, you may notify Apple or Google, as applicable, and Apple or Google will refund the purchase price for the MD3C application to you; and, to the maximum extent permitted by applicable law, Apple or Google, as applicable, will have no other warranty obligation whatsoever with respect to the MD3C application, and any other claims, losses, liabilities, damages, costs or expenses attributable to any failure to conform to any warranty will be our sole responsibility if not effectively disclaimed.

15. We do not warrant that a third party cannot view or decrypt your information should a third party come into possession of your device on which you have used the Service. We suggest that you use all security features of your device, including any password or locking function, to protect your device and the confidentiality of your information.

To the extent that the MD3C mobile application may utilize third-party wireless networks, we cannot guarantee that your communications will not be intercepted by others. You agree that we will not be liable for any damages for any loss or disclosure of personal information occurring in communication over networks outside our control.

16. From time to time we may issue updates to the MD3C mobile application through the Online Store or web server from which you download the MD3C mobile application, and a notification may be sent to your device. Depending on the update, you may not be able to use the MD3C mobile application until you have downloaded the latest version of the MD3C mobile application and accepted any new terms.

The MD3C mobile application is subject to transmission limitation or interruption. You agree that we may automatically update the MD3C mobile application for various reasons, including, but not limited to, improving the Services or improving the security of the MD3C mobile application.

17. You understand that the uploading of information to your mobile device in connection with the MD3C mobile application is at your own risk and that we are not responsible for unauthorized access to or use of any personal or other information. All information uploaded to the MD3C mobile application may be stored on your mobile device and you understand that the security and safety of your mobile device is your sole responsibility.

18. You acknowledge that the laws and regulations of the United States and other countries may restrict the export and re-export of the MD3C mobile application. You agree that you will not export or re-export the MD3C mobile application in any form or to any recipient whether inside or outside the United States in violation of applicable United States and foreign law. By downloading the MD3C mobile application, you represent and warrant that (i) you are not located in a country that is subject to a U. S. Government embargo, or that has been designated by the U. S. Government as a “terrorist supporting” country; and (ii) you are not listed on any U. S. Government list of prohibited or restricted parties.
19. Applicable Law and Dispute Resolution: By accessing the Service, you and MD3C agree that all matters relating to your access to, or use of, the Service shall be governed by the statutes and laws of the State of Illinois, without regard to its conflicts of laws principles. MD3C makes no representation that materials contained in the Service are appropriate or available for use in other locations, and accessing them from territories where their contents are illegal are prohibited. Those who choose to access the Service from other locations do so on their own initiative and are responsible for compliance with local laws.

Any dispute or claim relating in any way to your use of the Service will, to the extent permitted by law, be resolved by binding arbitration, rather than in court, except that you may assert claims in small claims court if your claims qualify.

There is no judge or jury in arbitration, and court review of an arbitration award is limited. However, an arbitrator can award on an individual basis the same damages and relief as a court (including injunctive and declaratory relief or statutory damages) and must follow the terms of this Agreement as a court would.

ANY CLAIM THAT EITHER OF US MAY HAVE ARISING OUT OF OR RELATING TO THESE TERMS OF USE (INCLUDING FORMATION, PERFORMANCE, OR BREACH OF THEM), OUR RELATIONSHIP WITH EACH OTHER, OR USE OF THE SERVICE MUST BE RESOLVED THROUGH BINDING INDIVIDUAL ARBITRATION IN ACCORDANCE WITH THE AAA’S CONSUMER ARBITRATION RULES, AVAILABLE WWW.ADR.ORG. ARBITRATION HEARINGS WILL BE HELD IN ILLINOIS . IF THIS LOCATION IS NOT CONVENIENT FOR YOU, PLEASE LET US KNOW AND WE WILL WORK TO DETERMINE A MUTUALLY CONVENIENT LOCATION. ANY DISAGREEMENTS REGARDING THE FORUM FOR ARBITRATION WILL BE SETTLED BY THE ARBITRATOR.

AS AN EXCEPTION TO THIS ARBITRATION PROVISION, EITHER YOU OR MD3C MAY PURSUE IN ILLINOIS SMALL CLAIMS COURT ANY CLAIM THAT IS WITHIN THAT COURT’S JURISDICTION SO LONG AS SUCH CLAIMS ARE BROUGHT ONLY ON AN INDIVIDUAL BASIS.

NOTHING HEREIN SHALL BE CONSTRUED TO PRECLUDE ANY PARTY FROM SEEKING INJUNCTIVE RELIEF IN THE STATE AND FEDERAL COURTS LOCATED IN ILLINOIS, IN ORDER TO PROTECT ITS RIGHTS PENDING AN OUTCOME IN ARBITRATION.

YOU AND MD3C ALSO AGREE TO ARBITRATE IN EACH OF YOUR AND OUR INDIVIDUAL CAPACITIES ONLY, NOT AS A REPRESENTATIVE OR MEMBER OF A CLASS, AND YOU AND WE EXPRESSLY WAIVE ANY RIGHT TO FILE A CLASS ACTION OR SEEK RELIEF ON A CLASS BASIS.

IF YOU INITIATE ARBITRATION, YOUR ARBITRATION FEES WILL BE LIMITED TO THE FILING

FEE SET FORTH IN AAA'S CONSUMER ARBITRATION RULES. REGARDLESS OF WHO INITIATES ARBITRATION, MD3C WILL PAY YOUR SHARE OF ARBITRATION FEES (NOT INCLUDING YOUR ATTORNEYS' FEES) UP TO A MAXIMUM OF \$2,500. IF THE ARBITRATOR RULES AGAINST MD3C, IN ADDITION TO ACCEPTING WHATEVER RESPONSIBILITY IS ORDERED BY THE ARBITRATOR, MD3C WILL REIMBURSE YOUR REASONABLE ATTORNEYS' FEES AND COSTS UP TO A MAXIMUM OF \$5,000, REGARDLESS OF WHO INITIATED THE ARBITRATION, UNLESS THE ARBITRATOR FINDS SOME OR ALL OF YOUR CLAIMS TO BE FRIVOLOUS OR TO HAVE BEEN BROUGHT IN BAD FAITH. IN ADDITION, IF THE ARBITRATOR RULES IN MD3C'S FAVOR, IT WILL NOT SEEK REIMBURSEMENT OF OUR ATTORNEYS' FEES AND COSTS, REGARDLESS OF WHO INITIATED THE ARBITRATION, UNLESS THE ARBITRATOR FINDS SOME OR ALL OF YOUR CLAIMS TO BE FRIVOLOUS OR TO HAVE BEEN BROUGHT IN BAD FAITH.

To help resolve any issues between us promptly and directly, you and MD3C agree to begin any arbitration within one year after a claim arises; otherwise, the claim is waived.

It is important that you understand that by entering into this agreement, both you and MD3C are each waiving the right to a trial by jury or to participate in a class action against the other party for claims that are covered by this "Applicable Laws and Disputes" section. The arbitrator's decision will be conclusive and binding and may be entered as a judgment in any court of competent jurisdiction.

20. Changes to these Terms of Use: We reserve the right to make changes to our Service or these Terms of Use, in whole or in part, at our discretion at any time. You agree to comply with, and be bound by, any such modifications by continuing to use or access the Service after modified Terms of Use are posted to this webpage.
21. Severability and Integration: Unless otherwise specified herein, these Terms of Use constitute the entire agreement between you and MD3C with respect to the Service and supersede all prior or contemporaneous communications and proposals (whether written or electronic) between you and MD3C with respect to the Service. If any provision in these Terms of Use is deemed by an arbitrator or court to be invalid, void, or for any reason unenforceable, such provision will be changed and interpreted so as to best accomplish the objectives of such unenforceable or invalid provision within the limits of the applicable rules, laws or court decisions. Any provision deemed invalid, void, or unenforceable shall be deemed severable and shall not affect the validity and enforceability of any remaining provision.
22. Waiver: Any waiver by us of a breach of any provision of these Terms of Use shall not operate as or be construed to be a waiver of any other breach of such provision or of any breach of any other provision of these Terms of Use. Any such waiver must be in writing. Failure by us to insist upon strict adherence to any term of these Terms of Use on one or more occasions shall not be considered a waiver or deprive us of the right to insist upon strict adherence to that term or any other term of these Terms of Use in the future.
23. Termination: MD3C reserves the right, at its sole discretion, to terminate your access to all or part of the Service with or without notice. Examples of activity that may lead to a termination of your use of the Service include your breach of any of these Terms of Use. You may terminate this Agreement by providing MD3C with ten (10) days written notice of such termination by contacting MD3C at support@hlthdsk.com.

24. **Fraudulent Use:** In addition to termination of access to the Service, we reserve the right to notify relevant authorities in the event that we detect or become aware of what we believe to be fraudulent use of the Service.

Fraudulent use of the Service may limit or eliminate the effect and relevance of various privacy rules and regulations, as allowed by law. In addition, fraudulent use may eliminate any refund to which you might otherwise be entitled.

25. **Notices:** MD3C may deliver notice to you under these Terms of Use by means of SMS message, e-mail, a general notice posted on this Website, or by written communication delivered by first-class U.S. mail to the address that you have provided to MD3C, with choice of communication means at the sole discretion of MD3C. You may give notice to, or submit comment, questions or complaints to, MD3C at any time via e-mail, using support@hlthdsk.com, or by letter delivered by first-class postage prepaid U.S. mail or overnight courier to the following address:

MD3C
233 E. Erie 2406
Chicago, IL 60611

26. **General Provisions:** Except as provided in a particular “Legal Notice” on this Website, these Terms of Use, along with the MD3C Privacy Policy, constitute the entire agreement and understanding between you and MD3C with respect to use of the Service, superseding all prior or contemporaneous communications with MD3C. These Terms of Use are severable, and in the event any provision is determined to be invalid or unenforceable, such invalidity or unenforceability shall not in any way affect the validity or enforceability of the remaining provisions. A printed version of these Terms of Use shall be admissible in judicial or administrative proceedings based upon or relating to use of the Service to the same extent and subject to the same conditions as other business documents and records originally generated and maintained in printed form. The section titles of this Agreement are displayed for convenience only and have no legal effect. Nothing in this Agreement shall be deemed to confer any third-party rights or benefits.
27. **Survival:** The provisions of these Terms of Use related to Warranty Exclusion, Limitation of Liability, and Indemnification, Applicable Law and Dispute Resolution, Jurisdiction, and General Provisions will survive the termination of this Agreement.
28. **Contact:**
If you have any questions or concerns about the Service or this Agreement, please contact us using the email address shown here:

MD3C
support @ hlthdsk.com

Addendum

Additional Terms of Use for the Facility Manager Role

These additional terms apply to anyone using the Service in the Facility Manager role. This role is limited to healthcare providers and / or their agents and representatives. These terms are in addition to the MD3C Terms of Use, shown above. In the event of a discrepancy between these additional terms and the MD3C Terms of Use, these additional terms shall prevail.

Key features of these Additional Terms of Use include:

- By creating or using a Facility Manager account, you agree and represent that your authority in your organization allows you to bind the organization to this Agreement.
 - MD3C can provide no guarantee of reliability and, use of the Service is at your own risk.
 - Patients use the Service to select a healthcare provider and establish a patient – healthcare provider relationship. Public or semi-public Information provided by the patient to the Service, i.e. name, phone number, email address, will not be considered personal health information by either party.
1. These additional terms apply to any user who creates or uses a Facility Manager account on the Service. This type of Account is created and accessed on the Service by a user who represent himself as a manager and / or representative of a healthcare facility.
 2. By creating or using an account with the Service as a Facility Manager, you represent and agree that your authority in your organization allows you to bind you, and your organization, to this Agreement.
 3. The Service may be used to create a communications link between a patient seeking same day healthcare and healthcare facilities that are capable of providing same day healthcare.
 - This patient-healthcare provider relationship will result in a flow of information from the patient to the healthcare providing entity (i.e. Covered Entity, as designated by the Health Insurance Portability and Accountability Act, or HIPAA).
 - Both parties to this Agreement agree that any personal information and specifically personal health information that you and /or your organization derive from this patient -healthcare provider relationship will be covered by the relevant privacy policies of your organization and of local, state, and federal authorities. This specifically includes the Health Insurance Portability and Accountability Act.
 - Both parties to this Agreement agree that publicly available or semi-publicly available personal information (e.g. phone number, email address) provided by the patient to the HealthDesk prior to or separate from a patient – healthcare provider relationship will not be covered by restrictions on use of personal health information that is derived from a patient-healthcare provider relationship, and if there are contradictions between this agreement and other agreements between the parties regarding this specific issue, the terms of this agreement shall prevail.
 - Both parties to this Agreement recognize and agree that MD3C retains the right to information derived from the patient's use of the service, i.e. the patient's phone number, email address, or other identifying information that is provided by the patient to MD3C prior to the potential creation of a provider – patient relationship.

4. The Service never intentionally stores nor retrieves personal health information. Accordingly, never use the Service in a manner that would cause it to store or retrieve personal health information.
5. The Service is designed to be reliable, and MD3C has contracted with technology partners to provide a reliable service. Nonetheless, the Service relies on numerous processes to successfully achieve its goals. These include, but are not limited to,
 - a. a device with a web browser
 - b. successful use of the device to create a connection to the Service using the web browser (or similar)
 - c. successful authentication of the user on the web browser
 - d. successful communication, using a network, between the user's device and the computer server(s) that is (are) responsible for the Service
 - e. the software associated with the Service
 - f. the computer hardware associated with the Service

Only a few of these processes are amenable to direct control by the Service. Accordingly, MD3C can provide no guarantee as to the reliability of the service. You and your organization agree to carefully evaluate the risks associated with use of the Service before using the Service. You agree not to use the Service for any process or function that requires a level of reliability that is greater than that which MD3C can guarantee (which is none).

6. The Service has no reliable means to authenticate users who represent themselves to be seeking healthcare. As such, you assume all risks derived from the communications link that the Service creates between you and your organization.